



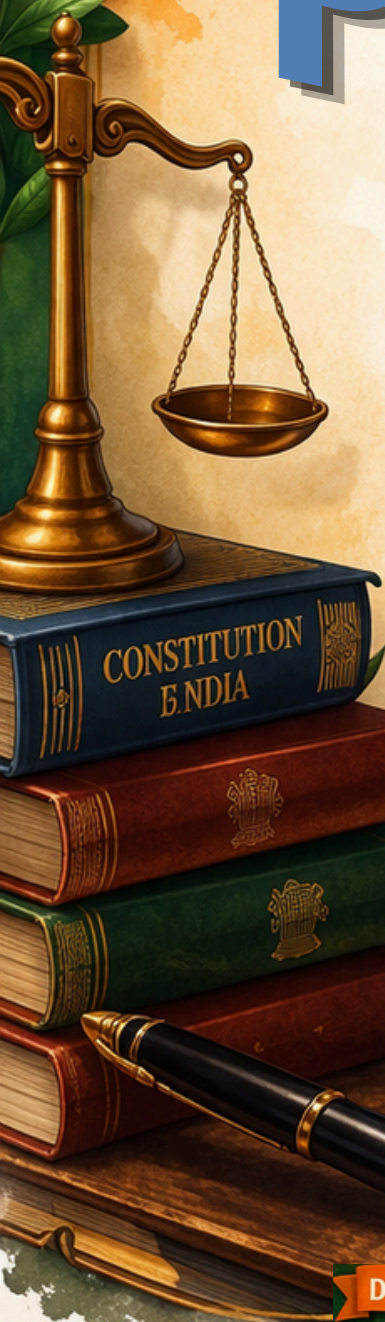
GK PYQ SERIES

[PART-6]

POLITY



LECTURE-3



DEMOCRACY

JUSTICE

RIGHTS

GOVERNANCE

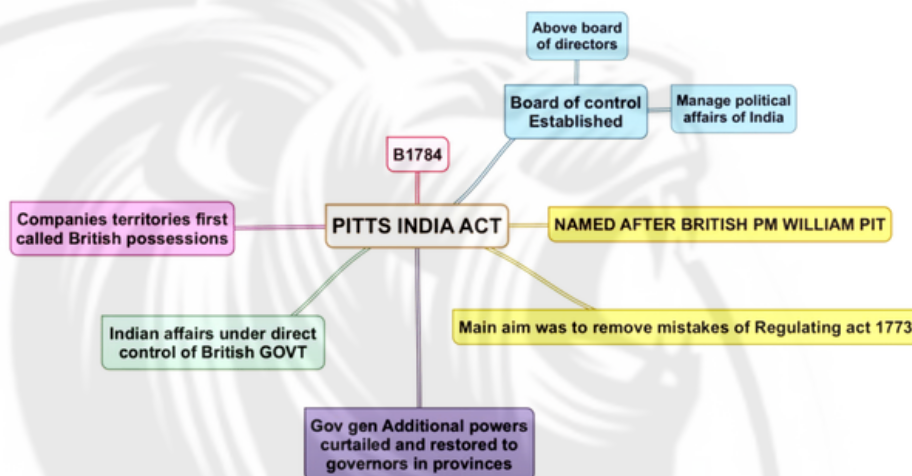
1 Under Pitt's India Act, what restriction was placed on the Governor General and Council?

SSC CGL-16 Sep 2025 12:30 PM (Shift-2)

- A) They could not pass any civil law without Queen's consent.
- B) They could not issue orders without majority support .
- C) They were forbidden to declare war or make treaties without approval. ✓
- D) They had to resign after 5 years in office.

EXPLANATION:

- Previously "COURT OF DIRECTORS" were exist to manage commercial functions. then "BOARD OF CONTROL" form to manage administrative/political functions.



2 Under which Act was a Law Commission first established in India to codify and consolidate Indian laws?

SSC CGL-22 Sep 2025 09:00 AM (Shift1)

- A) Government of India Act, 1858.
- B) Indian Councils Act, 1861.
- C) Regulating Act, 1773.
- D) Charter Act, 1833. ✓

EXPLANATION: Pre-Independence (1833 Act): The first ever Law Commission was headed by T.B. Macaulay.

- **Post-Independence:** The first Law Commission of independent India was established in 1955 and chaired by **M.C. Setalvad**.
- **Recent Commission:** The 23rd Law Commission was headed by **Justice Dinesh Maheshwari (1sep 2024 - 31 august2027)**
 - **Tenure:** The term of the Law Commission is 3 years.
- **Charter Act of 1813:** The East India Company (EIC) retained its trade monopoly only for trade with China and trade in tea.

Supreme Court at Calcutta (1774) → Sir Elijah Impey (first Chief Justice)

1st Viceroy → Lord Canning

The Charter Act of 1833, often called the St. Helena Act.

Act	Explanation
Regulating Act, 1773	Established the office of Governor-General of Bengal. Created a Supreme Court at Calcutta (1774) and introduced British government supervision over the East India Company.
Charter Act, 1833	Made the Governor-General of Bengal the Governor-General of India (Lord William Bentinck). It ended the Company's commercial activities, making it a purely administrative body.
Government of India Act, 1858	Transferred power from the East India Company to the British Crown. The Governor-General was now called the Viceroy (Lord Canning). Created the office of Secretary of State for India.
Indian Councils Act, 1861	Introduced the Portfolio system and decentralized legislative powers. It allowed Indians to be associated with the law-making process as non-official members.

Secretary of State for India:

- A new cabinet-level post in the British Parliament was created.
- This person was responsible for all Indian affairs, replacing the old dual system of the Court of Directors (East India Company) and the Board of Control.
- The first Secretary of State for India was **Lord Stanley** (later known as Edward Stanley, 15th Earl of Derby).
- A 15-member council was established to assist the Secretary of State.



- Governor of Bengal → Governor-General of Bengal (**1773**) → Governor-General of India (**1833**) → Viceroy of India (**1858**).

Indian Councils Act, 1861

- Viceroy nominated 3 Indians to the legislative council.
- now viceroy pass ordinance.

Article 123 - President's Ordinance Power

Article 213 - Governor's Ordinance Power

Charter Act of 1813:

- It allocated ₹1 lakh (100,000 rupees) annually for the promotion of education in India.
- It allowed Christian missionaries to enter India freely; their aim was to spread Christianity and establish schools.

Article 72 – President's Pardoning Power

Article 161 – Governor's Pardoning Power

- The Governor cannot pardon death sentences (can only suspend, remit, or commute them).
- The Governor cannot pardon court-martial sentences (these remain under the President's authority).

3 The Governor General's Council, as established by the Regulating Act, consisted of how many members?

SSC CGL -22 Sep 2025 04:00 PM

A) Three.

B) Five

C) Four ✓

D) Six

4 A Proclamation of National Emergency must be approved by each House within how many months?

SSC CGL-12 Sep 2025 04:00 PM (Shift3)

A) 1 ✓

B) 6

C) 3

D) 9

EXPLANATION:

Type of Emergency

1. **National Emergency (Article 352)**
2. **State Emergency / President's Rule (Article 356)**
3. **Financial Emergency (Article 360)**

- **Source:** The provisions for a National Emergency are borrowed from the **Weimar Constitution**.
- National Emergency is detailed in **Part XVIII** of the Indian Constitution under Article 352.
 - **Proclamation:** A National Emergency is officially proclaimed by the President.
 - **Approval Majority:** The emergency proclamation requires approval by a special majority in both the Lok Sabha (LS) and Rajya Sabha (RS).
 - **Revoking** it through this specific parliamentary route only requires a Simple Majority in the Lok Sabha.
- The 44th Amendment Act reduced the time limit for parliamentary approval from 2 months to 1 month.
- **Role of Cabinet:** The 44th Amendment mandated that the President requires the written recommendation of the "**Cabinet**" to declare an emergency.
- **Judicial Review:** The declaration of a National Emergency can be challenged in court, a principle upheld in the Minerva Mills case.
- **38th Amendment:** The 38th Amendment (1975), which previously made emergency declarations immune to judicial review, was overturned.
- **44th Amendment Act (1978):** The phrase "**internal disturbance**" (indicated by the squiggly line) was officially replaced by "**Armed Rebellion**" as a ground for emergency through the 44th CAA.



Effect on fundamental rights

- **Article 358:** This article automatically suspends the six fundamental rights guaranteed under Article 19 during an emergency.
- **Article 359:** This article allows for the suspension of the enforcement of other fundamental rights, with the strict exception of Articles 20 and 21, which can never be suspended.

- **State List:** During an emergency, Parliament gains the authority to make laws on subjects enumerated in the State List (Article-250).
- **Lok Sabha Term:** The normal tenure of the Lok Sabha (LS) can be extended by 1 year at a time while a National Emergency is in operation.
- **President's Rule (PR):** Unlike a National Emergency, a proclamation of President's Rule must be approved by Parliament within 2 months.
- **Constitution Day (Samvidhan Divas):** When it is celebrated: November 26th every year.
- **Constitution Hatya Diwas (Samvidhan Hatya Diwas):** When it is observed: June 25th every year.

• **Article 249: National Interest**

- Parliament can make laws on a subject in the State List if it is necessary for the "national interest."

• **Article 252: Mutual Consent of States**

- Parliament can make laws on a State List subject if two or more states request it.

• **Article 253: International Agreements**

- Parliament has the supreme power to make laws for the whole or any part of India to implement any international treaty, agreement, or convention.

• **Article 355: Duty of the Union**

- It is the constitutional duty of the Union (Central Government) to protect every State against:
 - External aggression (e.g., war).
 - Internal disturbance (e.g., massive riots or armed rebellion).

5

Consider the following statements:

1. The Sixth Schedule is applicable to Nagaland and Arunachal Pradesh.

2. It empowers autonomous district councils to make laws on specified subjects

S CGL- 15 Sep 2025 04:00 PM (Shift-3)

Which of the above is/are correct?

A) Only 1

C) Both 1 and 2

B) Only 2 ✓

D) Neither 1 nor 2

EXPLANATION: The Constitution was originally adopted in 1949, it had **8 Schedules**, but now **12 Schedules**.

TRICK

12 Schedules of Indian Constitution

T	Schedule 1	State and Union Territories Name and their Boundary details
E	Schedule 2	Special Powers and Salary details of President, Governors of state, Speakers and Deputy speakers of Rajiya Sabha and Lok Sabha, Supreme Court and High Court Judges.
A	Schedule 3	Affirmation and Oath and Promises of all authority except President and Vice President.
R	Schedule 4	Rajiya Sabha MP count of state and Union Territories
S	Schedule 5	Scheduled Area and scheduled Tribes Administration and control Law Details
O	Schedule 6	States of Assam, Meghalaya, Tripura, and Mizoram: Tribal Areas: Administration and Control Law Details(Trick- ATM money))
F	Schedule 7	Detailed List of Union and State Government Power and Concurrent List
O	Schedule 8	Official Languages(Originally-14, at present- 22)
L	Schedule 9	Validation of Certain Acts and Regulations (added by 1 st AA 1951)
D	Schedule 10	Details about Party Changes and Disqualification of MPs/MLAs(added by 52 nd AA 1985)
P	Schedule 11	Responsibilities and Powers of Panchayat(added by 73 rd AA 1992)
M	Schedule 12	Responsibilities and Powers of Municipalities(added by 74 th AA 1992)

5

- **Tribes Advisory Council:** The creation of a "Tribes Advisory Council" is a specific provision under the 5th Schedule of the Constitution.
 - **5th Schedule States:** There are exactly 10 states that fall under the 5th Schedule, which are listed below: -
 - **List of the 10 States:** These 10 states are Andhra Pradesh, Chhattisgarh (CG), Gujarat (GJ), Maharashtra (MH), Himachal Pradesh (HP), Telangana, Odisha (Od), Rajasthan (RJ), Madhya Pradesh (MP), and Jharkhand (JH).
- **The Union List (Central List) :** Number of Subjects: It originally contained 97 subjects and currently has 100.
 - **Key Examples:**
 - National Defense and Armed Forces
 - Foreign Affairs and International Relations
 - Banking, Currency, and Coinage
 - Railways, National Highways, and Airways
 - Telecommunications and Posts
- **The State List :** It originally contained 66 subjects, but currently has 61. (The 42nd Amendment shifted five subjects from this list to the Concurrent List).
 - **Key Examples:**
 - State Police and Public Order
 - Public Health, Sanitation, and Hospitals
 - Agriculture and Irrigation
 - Local Governments (Panchayats and Municipalities)
 - State Taxes (like toll taxes or liquor taxes)
- **The Concurrent List (The Shared List) :** Originally 47 subjects, currently 52, Both the Parliament and State Legislatures can make laws here.
 - **Key Examples:**
 - Education
 - Criminal Law and Procedure
 - Forests and Protection of Wildlife
 - Marriage and Divorce
 - Trade Unions and Labor Welfare

6

What was one major provision introduced by the Pitt's India Act of 1784 concerning the Court of Directors?

SSC CGL-25 Sep 2025 12:30 PM (Shift-2)

- A) It granted them authority to make laws for Indian states.
- B) It allowed them to dissolve Indian provincial courts.
- C) It made them accountable to the British Government in civil/military affairs. ✓
- D) It merged them with the Board of Control.

7

Arrange the following judicial events chronologically:

1. Berubari Union case
2. Kesavananda Bharati case
3. S.R. Bommai cas

SS CGL- 17 Sep 2025 04:00 PM (Shift-3)

A) 1-2-3 ✓

C) 3-2-1.

B) 2-1-3

D) 3-1-2.

EXPLANATION:

Case	Year	Key Issue	Judgment / Explanation	Importance
Berubari Union Case	1960	Whether Indian territory can be ceded to another country (Pakistan) by executive action	The Supreme Court held that cession of Indian territory requires a Constitutional Amendment under Article 368, not just executive action or law under Article 3	Established that territorial changes affecting sovereignty need constitutional amendment
Kesavana nda Bharati Case	1973	Scope of Parliament's power to amend the Constitution	Supreme Court ruled that Parliament can amend any part of the Constitution but cannot alter its "Basic Structure"	Introduced Basic Structure Doctrine (e.g., democracy, rule of law, judicial review)
S.R. Bommai Case	1994	Misuse of President's Rule under Article 356	Court held that President's Rule is subject to judicial review, and cannot be used arbitrarily.	Strengthened federalism and limited misuse of Article 356

- **Article 143:** The Berubari Union case was initiated as a Presidential reference to the Supreme Court under Article 143 of the Constitution.
- **9th Amendment:** The 9th Constitutional Amendment Act (1960), which was enacted to legally cede the Berubari territory to Pakistan.
- **Preamble Status:** The Berubari case refers to the Supreme Court's famous ruling that the Preamble is not a part of the Constitution.
- **100th Amendment (Indo-Bangla):** The 100th Constitutional Amendment was similarly required to legally exchange territorial enclaves between India and Bangladesh.

7

8

What is the correct sequence of values, from first to last, as mentioned in the Preamble of the Indian Constitution?

SSC CGL-25 Sep 2025 12:30 PM (Shift-2)

- A) Justice, Equality, Liberty, Fraternity
- B) Liberty, Justice, Equality, Fraternity
- C) Equality, Liberty, Justice, Fraternity
- D) Justice, Liberty, Equality, Fraternity ✓

EXPLANATION:

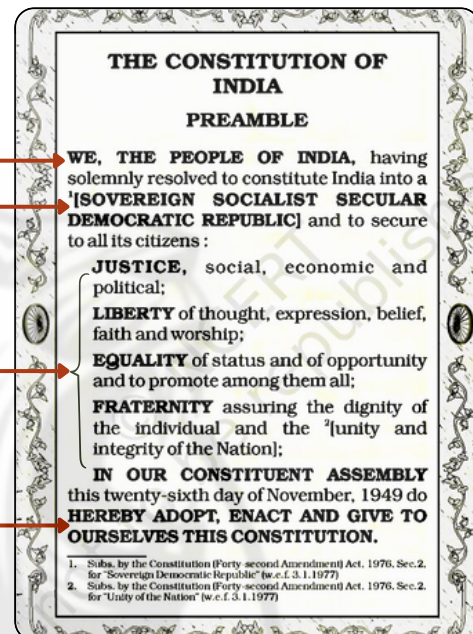
- The Preamble essentially serves as a **"summary"** of the Indian Constitution.
- Palkhivala **"identity card"**
- Munshi **"political horoscope"**
- Source of power of constitution
- Nature of constitution
- Objectives
- Date of adoption of constitution

Member of drafting committee and chairman of the Order of Business Committee in the Constituent Assembly.

- **Objective Resolution (OR):** The Preamble is based on the Objective Resolution, which was moved on December 13, 1946, and adopted on January 22, 1947.

- **Sovereignty:** The term "Sovereign" indicates that India is a completely independent state.
- **Republic:** The word "Republic" signifies that the country's head of state is an elected representative rather than a hereditary monarch.
- **Socialist** promotes economic equality through a mixed economy.
- **Secular** ensures the state respects all religions equally.
- **Democratic** guarantees that power rests with the elected representatives of the people.

- **Russian Influence:** The ideal of "Justice" (comprising social, economic, and political justice) was inspired by the USSR.
- **French Influence:** The ideals of Liberty, Equality, and Fraternity were adopted from the French Revolution.
- **Enforceability:** The Preamble is "non-justiciable," meaning its provisions cannot be legally enforced in a court of law.
- **Constitutional Status:** The Kesavananda Bharati Case (KBC) firmly established that the Preamble is officially a part of the Constitution.
- **42nd Amendment:** The 42nd Constitutional Amendment Act (CA) added three new words to the Preamble: **"Socialist," "Secular,"** and **"Integrity."**



8

- The concept of the Comptroller and Auditor General (CAG) is borrowed from the UK.

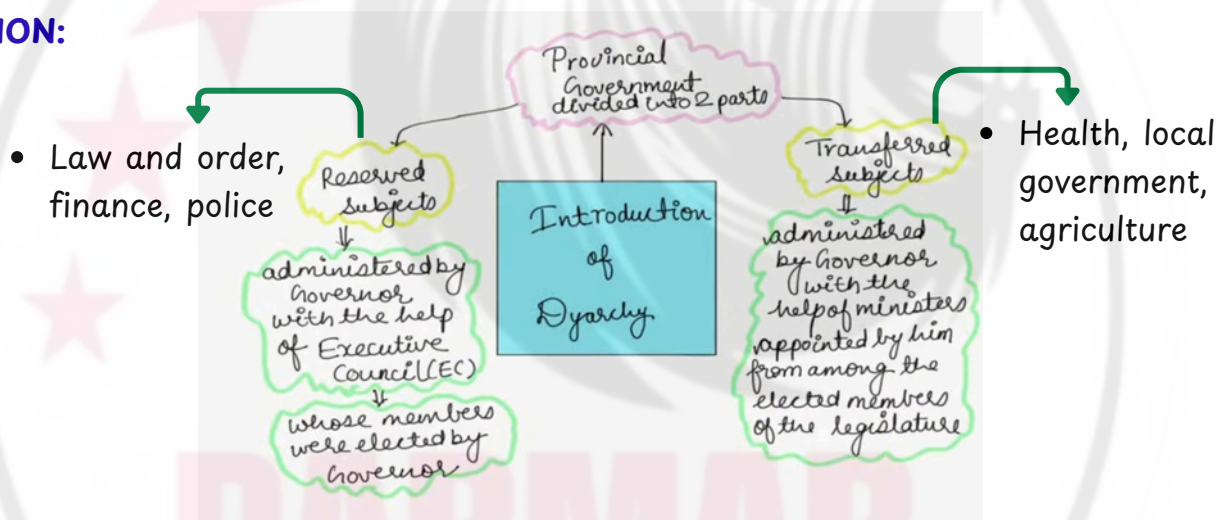
9

Which of the following statements regarding the Government of India Act, 1919 is correctly matched with its constitutional implication?

SSC CGL-18 Sep 2025 09:00 AM (Shift1)

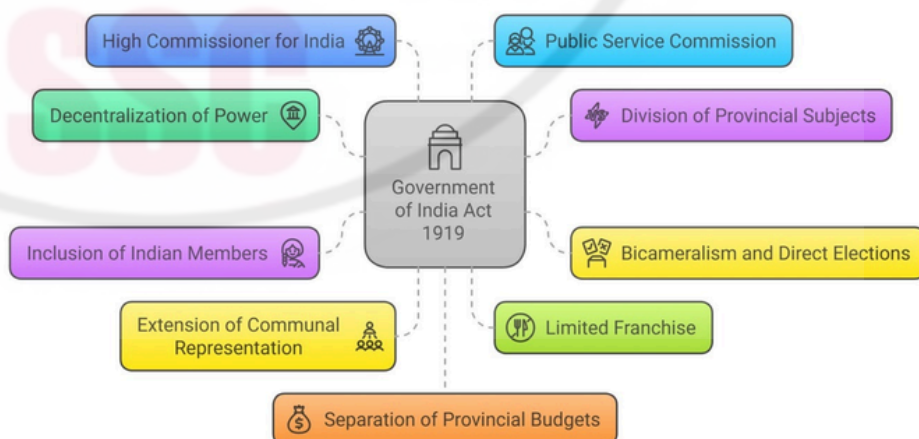
- A) Transferred and Reserved subjects - Created functional overlap between central and provincial powers.
- B) Creation of bicameralism - Introduced two houses at the central level for the first time. ✓
- C) Establishment of Public Service Commission - Gave financial control to Indian members in the Viceroy's Council.
- D) Introduction of diarchy in provinces - Empowered Indian ministers to control defence and foreign affairs.

EXPLANATION:



- Government of India Act, 1919 (Montagu-Chelmsford): Introduced bicameralism at the Centre.
 - It extend separate electorates.
- 1909 Act (Morley-Minto): S.P. Sinha became the first Indian in the Viceroy's council; introduced separate electorates for Muslims.
- 1935 Act: Introduced provincial autonomy and dyarchy at the Centre.

Key Features of the Government of India Act 1919



9

10

Which of the following statements is/are correct regarding the borrowing powers of States in India?

1. A State requires the Centre's consent for internal borrowing if it owes any debt to the Centre.
2. No State can raise loans from foreign sources without prior approval of the Union Government.

SS CGL- 21 Sep 2025 04:00 PM (Shift-3)

A) Only 1

B) Only 2

C) Both 1 and 2 ✓

D) Neither 1 nor 2

EXPLANATION: • Article 293(3) governs the borrowing powers of states.

11

Which of the following statements regarding State Funds under the Indian Constitution is/are correct?

1. The Consolidated Fund of the State is defined under Article 266.
2. The Contingency Fund of the State is operated by the Governor in accordance with rules made by the State Legislature.

SS CGL- 20 Sep 2025 12:30 PM (Shift-2)

A) Only 1

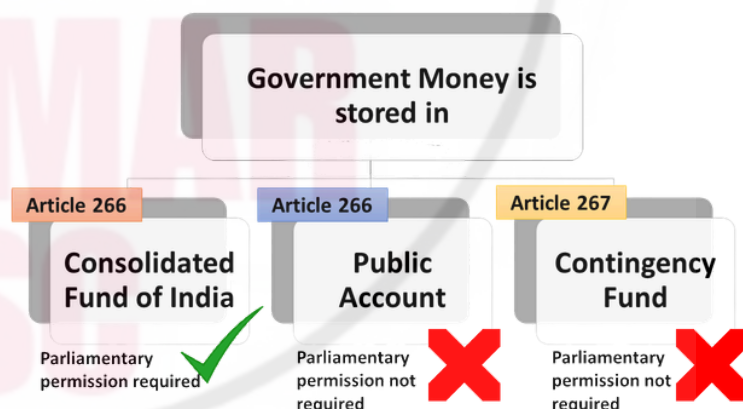
B) Only 2

C) Both 1 and 2 ✓

D) Neither 1 nor 2

EXPLANATION:

- **Article 266(1):** Consolidated Fund of India (CFI).
 - Certain expenditures are "**charged**" (non-votable),
 - while others are made through **voting** in the **Lok Sabha**.
- **Article 266(2):** Public Account of India.
- **Article 267:** Contingency Fund. The **CAG** acts as the **guardian of the public purse**.



12

What is the role of Article 263 in maintaining Union-State coordination? /

SSC CPO 2025

A) Creates Zonal Councils.

B) Settles taxation disputes.

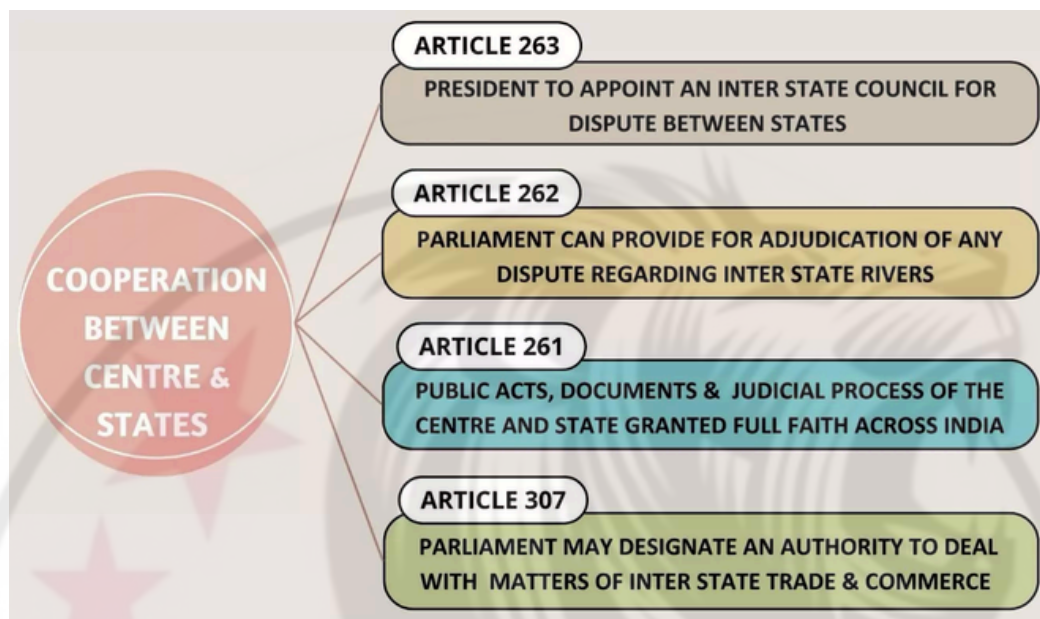
C) Enforces Emergency Provisions.

D) Provides Inter-State Council framework. ✓

EXPLANATION: • **Zonal Councils** are statutory bodies under the States Reorganisation Act (1956), headed by the Home Minister.

10

- **The Inter-State Council (Article 263)** is a non-statutory/constitutional body formed by the President in 1990, headed by the PM, 6 union cabinet ministers (nominated by prime minister), all States/Union territories CM.
- **Law commission of india** is a executive/non-statutory body.



13

Which Constitutional Amendment made it mandatory for States to establish Panchayati Raj Institutions as units of local self-governance?

SSC CGL- 5 Sep 2025 04:00 PM (Shift-3)

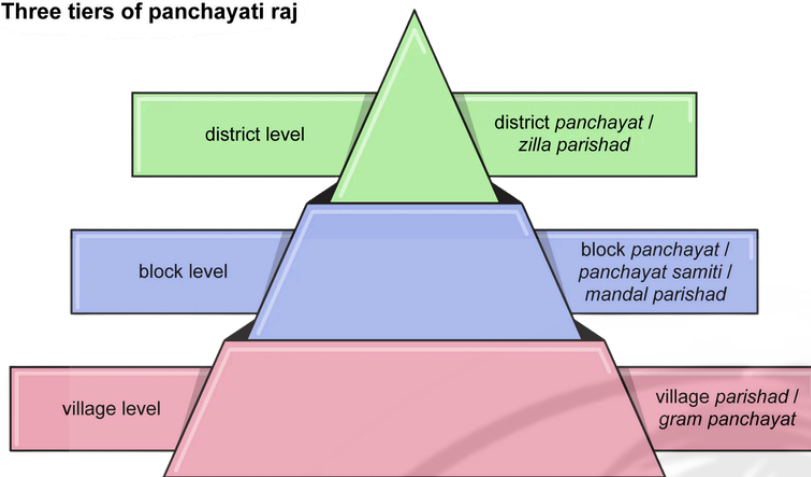
- A) 42nd Amendment
- B) 73rd Amendment. ✓
- C) 74th Amendment
- D) 44th Amendment

EXPLANATION: • **Article 368 (Part 20)** deals with amendments, a feature borrowed from South Africa.

- **The 74th Constitutional Amendment Act, 1992**, introduced Part IXA ("The Municipalities") to the Indian Constitution, which covers Articles 243P to 243ZG.
- **The 44th Amendment Act** was designed to undo the excesses of the 42nd Amendment, strengthen democracy, and protect citizens' rights from arbitrary suspension.
- **The 73rd Amendment Act** made Panchayati Raj a constitutional institution, ensuring decentralized governance and empowering villages to manage their own affairs, came into force on April 24, 1993, adding Part IX, covering Articles 243 to 243(O).
 - 24 april **panchayati raj diwas**.
 - The 73rd Amendment also added the 11th Schedule, which contains 29 functional items for Panchayats.
 - **First Implementation:** The Panchayati Raj system was first adopted on October 2, 1959, in the Nagaur district of Rajasthan (RJ), followed subsequently by Andhra Pradesh (AP).

11

Three tiers of panchayati raj



• **Committees:**

- **Balwant Rai Mehta** (1957, 3-tier);
- **Ashok Mehta** (1977, 2-tier);
- **L.M. Singhvi** (1986);
- **Thungon** (1988);
- **Gadgil** (1988). An intermediary level can be skipped if the population is below 2 million.

Articles	Provisions
243	Definitions.
243A	Gram Sabha.
243B	Constitution of Panchayats.
243C	Composition of Panchayats.
243D	Reservation of seats. SC/ST and women(1/3)
243E	Duration of Panchayats, etc. 5 year
243F	Disqualifications for membership minimum age 21 year
243G	Powers, authority and responsibilities of Panchayats.
243H	Powers to impose taxes by, and Funds of, the Panchayats.
243-I	Constitution of Finance Commission to review financial position.
243J	Audit of accounts of Panchayats.
243K	Elections to the Panchayats.
243L	Application to Union territories.
243M	Part not to apply to certain areas
243N	Continuance of existing laws and Panchayats.
243-O	Bar to interference by courts in electoral matters

The **PESA Panchayats Extension to Scheduled Areas Act**, 1996 empowers tribal communities in Scheduled Areas by giving Gram Sabhas control over natural resources, culture, and local governance, ensuring true grassroots democracy.

14

Which of the following is true about Fundamental Rights and DPSPs?

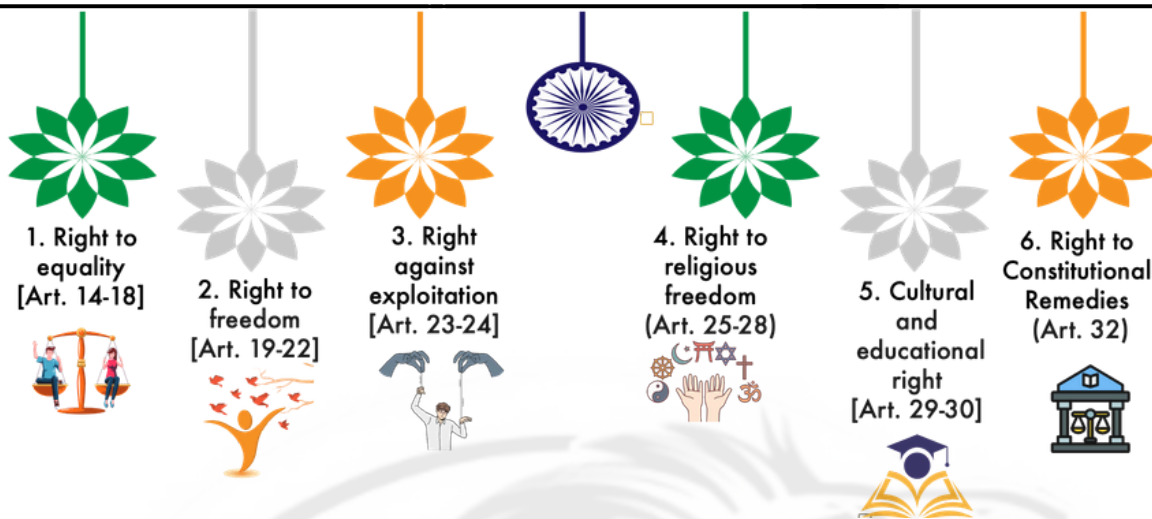
SSC CGL-12 Sep 2025 09:00 AM (Shift1)

- A) Fundamental Rights are non-justiciable.
- B) DPSPs are enforceable by courts.
- C) Fundamental Rights are justiciable while DPSPs are non-justiciable. ✓
- D) Both are non-justiciable.

EXPLANATION:

- **Fundamental Rights (Arts. 12-35)** are borrowed from US act as the Magna Carta and promote political democracy.
- **DPSPs (Arts. 36-51)Part IV**, are borrowed from Ireland, promote social and economic democracy, and aim to establish a welfare state

12



15 Article 50 is part of which section of the Constitution?

SSC CGL- 16 Sep 2025 09:00 AM(Shift1)

- A) Fundamental Duties.
- B) Fundamental Rights.
- C) Preamble.
- D) Directive Principles of State Policy. ✓

EXPLANATION: • DPSPs are classified into Socialist, Gandhian, and Liberal-Intellectual categories.

- Article 51 involves international peace, relations, international treaty and dispute resolution.



- The 86th Constitutional Amendment Act (2002) is related to Article 45.

16 The President is elected by an electoral college, while the Governor is ?

SSC CGL - 13 Sep 2025 12:30 PM (Shift-2)

- A) Directly elected
- B) Nominated by Supreme Court
- C) Appointed by the President ✓
- D) Chosen by State Assembly

EXPLANATION:

- The **Presidential election is indirect**, using Proportional Representation + Single Transferable Vote (PR + STV) by elected MPs and MLAs.
- The Governor is nominated by the Centre

- **Impeachment (Article 61):** Borrowed from the US. It is a quasi-judicial process for "Violation of Constitution" (a term not defined in the Constitution). Requires 14 days notice, 1/4th members' signatures to initiate, and a special majority (2/3rd) to pass.
 - All MPs (elected and nominated) participate

17 Which Article of the Constitution confers the right to constitutional remedies, and how is it linked to Fundamental Rights?

SSC CGL-19 Sep 2025 04:00 PM (Shift-3)

- A) Article 32; it is called the "heart and soul" of the Constitution. ✓
- B) Article 226; it is a protective mechanism for Directive Principles.
- C) Article 21; it deals with personal liberty only.
- D) Article 14; it ensures equality before law.

EXPLANATION:

5 TYPES OF WRITS

Writ	Purpose
Habeas Corpus	To produce the body
Mandamus	To command a public duty
Prohibition	To prevent excess of jurisdiction
Certiorari	To quash an order or decision
Quo Warranto	To challenge a person's authority

- not issue against president and governor.

- not issue against legislative authority.

- Unlawful detention
- The ADM Jabalpur case (1976) is associated with Habeas Corpus.

- not issue against legislative authority or administrative authority.

- by what authority of

- **Article 32** applies to the Supreme Court, while Article 226 applies to High Courts. The HC's writ jurisdiction is wider as it covers both Fundamental Rights and Legal Rights.

18 What is the minimum age required to contest the Presidential election in India?

SSC CGL - 13 Sep 2025 12:30 PM (Shift-2)

- A) 25
- B) 30
- C) 35 ✓
- D) 40

EXPLANATION:

- **Minimum age requirements:** 21 for Panchayat, 25 for Lok Sabha, 30 for Rajya Sabha, and 35 for President/Governor. Voting age is 18.

Articles Related to President		TRICK
Article 52	The President of India	Pr
Article 53	Executive power of the Union	E
Article 54	Election of President	E
Article 55	Manner of election of President	M
Article 56	Term of office of President	Tr
Article 57	Eligibility for re-election	E
Article 58	Qualifications for election as President	Q
Article 59	Conditions of President's office	C
Article 60	Oath or affirmation by the President	O
Article 61	Procedure for impeachment of the President	I
Article 62	Time of holding election to fill vacancy in the office of president	T

- The President can be re-elected any number of times but must be qualified to be a member of the Lok Sabha and in case of vice president must be qualified to be a member of the Rajya Sabha.

19 Which Article deals with the extent of executive power of the Union, defining the scope and limitations of the Union Government's authority in administration?

DELHI POLICE 2025

A) Article 73 ✓

B) Article 75

C) Article 74

D) Article 77

EXPLANATION:

Article	Explanation
Article 73 of Indian Constitution	Defines the extent of executive power of the Union. It extends to matters on which Parliament can make laws and to rights, authority, and jurisdiction of the Government of India.
Article 74 of Indian Constitution	Provides that there shall be a Council of Ministers headed by the Prime Minister (head of govt./de-facto head) (have real power) to aid and advise the President. The President (nominal head) acts according to their advice.
Article 75 of Indian Constitution	Deals with appointment, tenure, responsibility, and salaries of ministers. Ministers are collectively responsible to the Lok Sabha.
Article 77 of Indian Constitution	Deals with the conduct of business of the Government of India. All executive actions are taken in the name of the President.

- The Prime Minister (Article 78 duties)** is the "linchpin of the government", the real head, and the head of the government. Advice flows: COM -> PM -> President

20 Which institution has issued guidelines to prevent arbitrary exercise of police powers, such as custodial torture or illegal detention?

DELHI POLICE 2025

A) National Human Rights Commission

B) Law Commission of India

C) Supreme Court of India ✓

D) Central Bureau of Investigation

EXPLANATION:

- The D.K. Basu vs State of West Bengal case (1997) laid guidelines against custodial violence.
- The NHRC (The National Human Rights Commission) was established by a 1993 Act.
 - Current chairman** V. Ramasubramanian (he should be the retired CJI or judge of SC).
 - NHRC Tenure:** The term of office for the chairperson and members of the NHRC is 3 years or until they reach the age of 70 years.

- **NHRC Selection Committee:** The committee that recommends NHRC appointments includes the Prime Minister (**PM**), Home Minister (**HM**), Leaders of the Opposition (**LoO**) in both the Lok Sabha (**LS**) and Rajya Sabha (**RS**), the Lok Sabha Speaker, and the Deputy Chairman of the Rajya Sabha.
- The CBI is a non-statutory body deriving powers from the DSPE Act 1946.

21

Election of member of Rajyasabha on the basis of propotional representation is sourced from the constitution of which country?

DELHI POLICE 2025

A) South Africa ✓

B) France

C) USSR

D) Canada

EXPLANATION: • Article 80 details the Rajya Sabha seats.

BORROWED FEATURE OF INDIAN CONSTITUTION

British Constitution

- Parliamentary form of Government
- Bicameralism and Cabinet system
- Parliamentary Privileges
- Rule of law
- Lawmaking procedure
- Single Citizenship
- Doctrine of pleasure



Govt. of India Act, 1935

- Office of the Governor
- Federal Scheme
- Administrative Details
- Judiciary
- Public Service Commissions
- Emergency Provisions



American Constitution

- Fundamental Rights
- Post of Vice-President
- Impeachment of President
- Judicial Review
- Removal of SC and HC Judges



Australian Constitution

- Concurrent list
- Joint Sitting of Parliament
- Freedom of Trade & Service within country



Irish Constitution

- Directive Principles
- Election of the President of India
- Nomination of members to RS



France Constitution

- Concept of Republic
- Principles of Liberty, Equality and Fraternity



Japan Constitution

- Procedure Established by Law



Weimar Constitution

- Suspension of the Fundamental Rights during Emergency in the Preamble



South African Constitution

- Amendment of Constitution

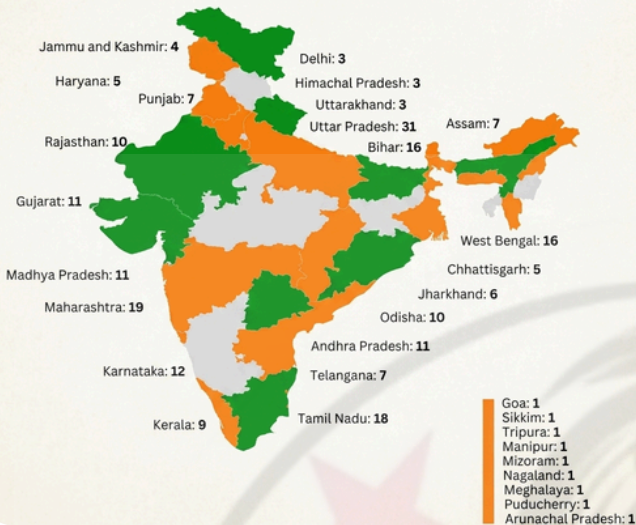


Canadian Constitution

- Federal System with strong Central authority
- Residual power in the Centre
- Appointment of state governor by Centre
- Advisory Jurisdiction of the



STATE WISE SEATS IN RAJYA SABHA



LOK SABHA LIST OF CONSTITUENCIES

Uttar Pradesh	80	Maharashtra	48	West Bengal	42
Bihar	40	Tamil Nadu	39	Madhya Pradesh	29
Karnataka	28	Gujarat	26	Rajasthan	25
Andhra Pradesh	25	Odisha	21	Kerala	20
Telangana	17	Assam	14	Jharkhand	14
Punjab	13	Chhattisgarh	11	Haryana	10
Uttarakhand	05	Himachal Pradesh	04	Arunachal Pradesh	02
Goa	02	Manipur	02	Meghalaya	02
Tripura	02	Mizoram	01	Nagaland	01
Sikkim	01	Jammu & Kashmir	05	Delhi	07
Andaman & Nicobar Islands	01	Chandigarh	01	Dadra & Nagar Haveli & Daman and Diu	02
Ladakh	01	Lakshadweep	01	Puducherry	01

22

Under which Article does the Governor administer oath of office to the Chief Minister and other Ministers, allowing them to legally assume executive responsibilities in the State?

DELHI POLICE 2025

A) Article 163

B) Article 164 ✓

C) Article 165

D) Article 167

EXPLANATION: • Article 75(1) deals with the Union.

Article	Explanation
Article 163 of Indian Constitution	There shall be a Council of Ministers headed by the Chief Minister to aid and advise the Governor. The Governor can act in discretion in some cases.
Article 164 of Indian Constitution	Deals with appointment, tenure, and responsibility of State Ministers. Chief Minister is appointed by Governor, and Council of Ministers is collectively responsible to Legislative Assembly.
Article 165 of Indian Constitution	Provides for the Advocate General of the State, who is the highest legal officer and gives legal advice to the State Government.
Article 167 of Indian Constitution	Defines the duties of the Chief Minister to inform the Governor about decisions of the Council of Ministers and administration matters.

• **Article 164 clause: -**

- 164(1): Appointment of Chief Minister and Ministers
- 164(2): Collective Responsibility
- 164(3): Oath
- 164(4): Number of Ministers
- 164(5): Special Provision for Certain States

17

23 Which Article outlines the Governor's discretionary powers, specifying circumstances where the Governor may act independently without the advice of the Council of Ministers?

DELHI POLICE 2025

- A) Article 153 B) Article 154 C) Article 163 ✓ D) Article 167

EXPLANATION:

Article	Explanation
Article 153 of Indian Constitution	Provides that there shall be a Governor for each State. One person can be Governor of two or more States (7th CA).
Article 154 of Indian Constitution	The executive power of the State is vested in the Governor, and exercised by him directly or through officers.
Article 163 of Indian Constitution	There shall be a Council of Ministers headed by the Chief Minister to aid and advise the Governor. Governor may act in discretion in some cases.
Article 167 of Indian Constitution	Defines duties of the Chief Minister to provide information to the Governor regarding administration and decisions.

24 Which Article assign responsibility of calling for election in a state to the election commission ?

DELHI POLICE 2025

- A) Article 324 ✓ B) Article 325 C) Article 326 D) Article 327

EXPLANATION:

- The Election Commission is covered in **Part XV (Articles 324-329)**. Sukumar Sen was the 1st CEC.
- The 61st Amendment (1988) lowered the voting age **from 21 to 18**.
- **The EC structure shifted:** Multi-member (1989) -> Single (1990) -> Multi-member (1+2) (1993). Decisions taken by majority.
- **The EC handles** Lok Sabha, Rajya Sabha, Legislative Assembly, and Legislative Council elections. The State Election Commission (Article 243K) handles Panchayats and Municipalities

• **Article 324:** Vesting of superintendence, direction, and control of elections in an Election Commission.
 • **Article 325:** No person to be ineligible for inclusion in, or to claim to be included in a special, electoral roll on grounds of religion, race, caste, or sex.
 • **Article 326:** Elections to the House of the People and to the Legislative Assemblies of States to be on the basis of adult suffrage.
Article 327: Power of Parliament to make provision with respect to elections to Legislatures.
Article 328: Power of Legislature of a State to make provision with respect to elections to such Legislature.
Article 329: Bar to interference by courts in electoral matters.

25

The "Golden Triangle" in Indian constitutional jurisprudence refers to —

DELHI POLICE 2025

A) Articles 14, 19, and 21 ✓

B) Articles 32, 136, and 226

C) Articles 368, 371, and 372

D) Articles 280, 281, and 282

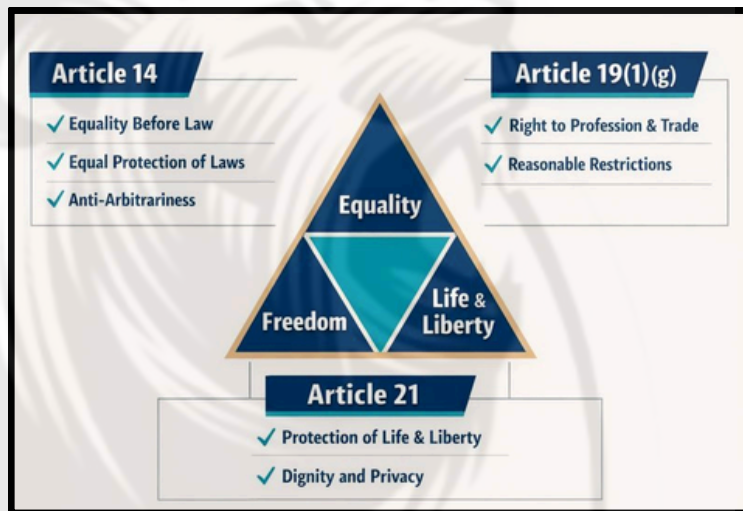
EXPLANATION: • **Important cases:** Anwar Ali Sarkar (Equality) and Maneka Gandhi 1978 (Life & Liberty).

- **Article 19(1) protects Speech & expression, Assembly, Association, Movement, Residence & settlement, and Occupation & profession. (TRICK - SAAMRO)**
 - The Right to Property was repealed by the 44th Amendment.

- **Reasonable restrictions on Speech**

[Article 19(2), 19(3)]: Defamation, Public Order, Sovereignty, Morality.

- Fundamental Rights are not absolute and not permanent.



26

The term "Office of Profit," used to determine disqualification of Members of Parliament for holding certain positions that may influence independence, is mentioned under which constitutional Article?

DELHI POLICE 2025

A) Article 102 ✓

B) Article 110

C) Article 105

D) Article 312

EXPLANATION:

- **Disqualifications under Articles 102** include "Office of Profit" (RPA 1951), Not citizen of India, Unsound Mind, Undischarged Insolvent, and Defection.
- "Office of Profit" nowhere defined in the constitution.

Article	Explanation
Article 102 of Indian Constitution	Deals with disqualification of Members of Parliament (e.g., office of profit, unsound mind, insolvency, foreign citizenship).
Article 105 of Indian Constitution	Defines powers, privileges, and immunities of Parliament and its members (freedom of speech in Parliament).
Article 110 of Indian Constitution	Defines a Money Bill (related to taxation, borrowing, Consolidated Fund, etc.). Speaker of Lok Sabha decides whether a bill is a Money Bill.
Article 312 of Indian Constitution	Provides for creation of All India Services (like IAS, IPS) if Rajya Sabha passes a resolution by 2/3 majority.

19

27

Which authority has the power to extend the jurisdiction of a High Court to a Union Territory, allowing that UT to come under the judicial authority of an existing High Court?

DELHI POLICE 2025

- A) Parliament ☒ B) Supreme Court C) President D) Governor

EXPLANATION: • **Article 230** extends High Court jurisdiction to Union Territories.

Union Territory	High Court Jurisdiction
Delhi	Has its own Delhi High Court (established in 1966).
Andaman & Nicobar Islands	Under the jurisdiction of the Calcutta High Court.
Chandigarh	Under the Punjab & Haryana High Court (located in Chandigarh itself).
Dadra & Nagar Haveli and Daman & Diu	Under the Bombay High Court.
Lakshadweep	Under the Kerala High Court.
Puducherry	Under the Madras High Court.
Ladakh	Under the Jammu & Kashmir and Ladakh High Court (renamed after reorganization in 2019).
Jammu & Kashmir	Shares the same Jammu & Kashmir and Ladakh High Court.

- **Article 231** allows a common High Court for two or more states.

28

Which Article of the Indian Constitution provides special provisions for Nagaland regarding religious or social practices, customary law, and land & resources?

DELHI POLICE 2025

- A) Article 371A ☒ B) Article 371C C) Article 371B D) Article 370

EXPLANATION:

Article No.	Subject-matter
371	Special provision with respect to the states of Maharashtra and Gujarat.
371 – A.	Special provision with respect to the state of Nagaland.
371 – B.	Special provision with respect to the state of Assam
371 – C.	Special provision with respect to the state of Manipur
371 – D.	Special provisions with respect to the state of Andhra Pradesh or the state of Telangana
371 – E.	Establishment of Central University in Andhra Pradesh
371 – F.	Special provisions with respect to the state of Sikkim
371 – G.	Special provision with respect to the state of Mizoram
371 – H.	Special provision with respect to the state of Arunachal Pradesh
371 – I.	Special provision with respect to the state of Goa
371 – J.	Special provisions with respect to the state of Karnataka

TRICK

- **Ma G, N, A, M, A, A, S, M, A, G, K**

20

29

Which of the given writs Literally means command, i.e. to command a person to do its duty?

DELHI POLICE 2025

A) Prohibition

B) Mandamus ✓

C) Certiorari

D) Quo warranto

EXPLANATION:

- Prohibition means "to forbid".
- Quo Warranto means "by what authority of".
- Certiorari means "to be certified of"

30

When was National Anthem of India adopted by Constituent Assembly ?

DELHI POLICE 2025

A) 22 July 1947

B) May 1949

C) 24 January 1950 ✓

D) 26 January 1950

EXPLANATION:

- The Constituent Assembly had a total of **389 seats**, comprising **296 elected** members and **93 nominated** members from Princely States.
 - Out of the **296 elected** seats, **292 were from Governor's provinces** and **4 were from Chief Commissioner's provinces.**
- **The first meeting of the Constituent Assembly** was held on 9 December 1946 and was attended by **211 members.**
- The **Objectives Resolution** was introduced to the assembly by Jawaharlal Nehru on **13 December 1946.**
 - **President of the Assembly:** Dr. Rajendra Prasad.
 - **Temporary Chairman:** Dr. Sachchidananda Sinha.
 - **Constitutional Adviser:** B.N. Rau.
 - **Vice-President:** H.C. Mukherjee
 - **Symbol:** Elephant
 - The calligrapher for the {
 - Hindi version** → **Vasant Krishan Vaidya.**
 - English version** → **Prem Behari Narain Raizada.**
 - The illustrations and artwork for the Constitution were created by Nandalal Bose.
- **Constituent Assembly** (8 Major committee and 13 Minor committee).
- **The National Flag**, featuring a 3:2 ratio and designed by **Pingali Venkayya**, was adopted on July 22, 1947.
- India's membership in the Commonwealth was officially ratified in May 1949.
- The National Song and National Anthem were adopted on January 24, 1950, which is also when Rajendra Prasad became the first President.

21

- The elephant was adopted as the official symbol (seal) of the Constituent Assembly.
- Drafting Committee - 7 members and chairman - (B.R.Ambedkar).
- **Specific provisions** related to citizenship, elections, and the provisional parliament came into force early on November 26, 1949.

Article	Explanation
Article 80 of Indian Constitution	Deals with the composition of Rajya Sabha. Members are elected by State Legislative Assemblies; some are nominated by the President.
Article 81 of Indian Constitution	Deals with the composition of Lok Sabha. Members are directly elected by the people.
Article 88 of Indian Constitution	Gives Ministers and Attorney General the right to participate in Parliament proceedings, but they cannot vote if not members.
Article 102 of Indian Constitution	Deals with disqualification of MPs (office of profit, unsound mind, insolvency, foreign citizenship, etc.).

- **Article 102** deals with disqualifications for membership, including provisions related to the anti-defection law.
 - **Disqualification Decisions:** For general disqualifications (like holding an office of profit), the final decision is made by the President, who must act according to the opinion of the Election Commission of India (ECI).
 - **Defection Authority:** However, if a member is facing disqualification on the grounds of "Defection," the decision is made exclusively by the **Presiding Officer** of that specific House.
- The landmark Kihoto Hollohan case established that the Presiding Officer's decision regarding defection is not absolute and is subject to Judicial Review.
- The anti-defection provisions are contained in the 10th Schedule of the Constitution.
 - The 10th Schedule was originally added by the 52nd Amendment Act, and its provisions (along with the size of the council of ministers under Article 75(1A)) were later modified by the 91st Amendment Act.

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